

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



March 7, 2019

The Honorable David De Alba
Judge of the Superior Court
County of Sacramento
3341 Power Inn Road, Dept. 129
Sacramento, CA 95826

Re: Craig A. Birch
CDCR No: J53333
Case No: 94F08004
Date of Sentence: March 17, 1995

Dear Honorable David De Alba:

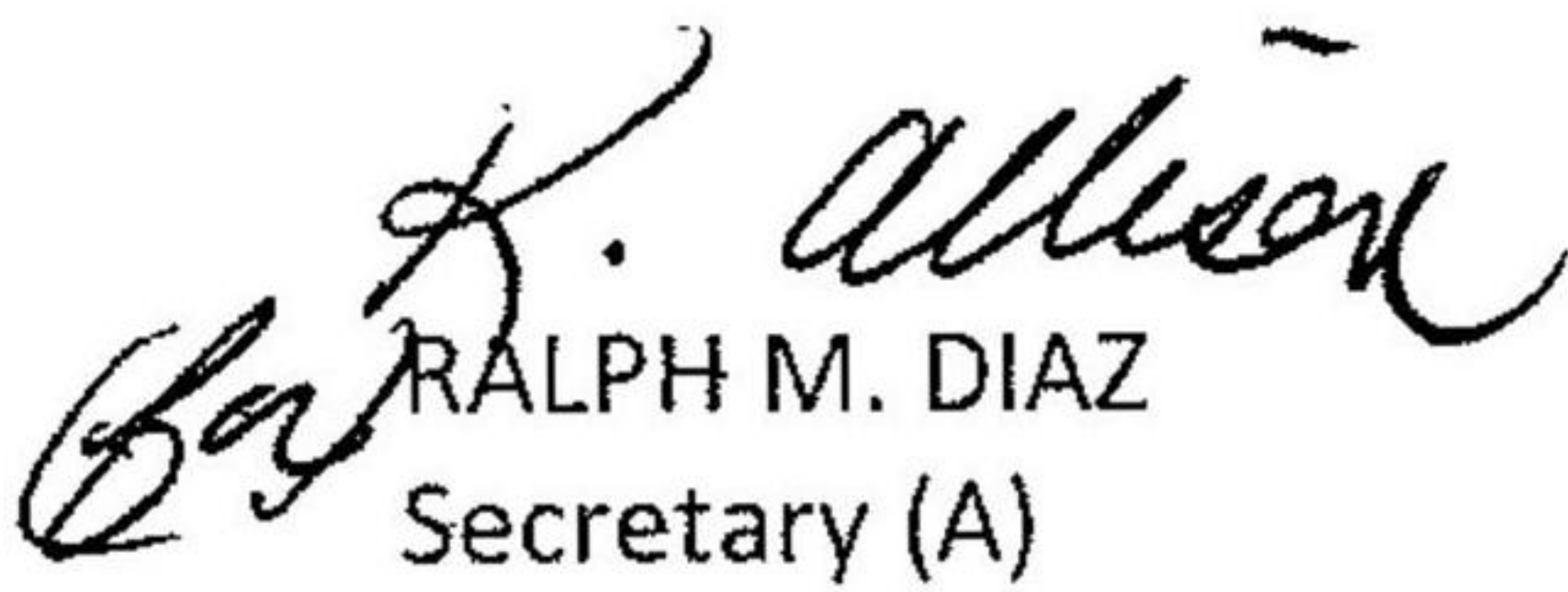
The purpose of this letter is to provide the court with the authority to resentence inmate Craig A. Birch, pursuant to Penal Code (PC) Section 1170, subdivision (d)(1). PC Section 1170, subdivision (d) provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence, provided the new sentence is no greater than the initial sentence.

Inmate Birch is commended for remaining free from serious disciplinary during this entire incarceration period and free from administrative disciplinary action since 2005. Inmate Birch has taken full advantage of opportunities to successfully transition back into society by taking numerous college classes, participating in Self-Help Programs and gaining work experience in a variety of capacities. Documentation reflects that Birch has provided two random urine samples during his incarceration and has never tested positive for the use of any controlled substance.

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Having reviewed the enclosed documentation, it appears that inmate Birch's sentence warrants the attention of the court. Pursuant to PC Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resentenced.

Sincerely,


RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment - Determinate
Minute Order
Court Information-Charging Documents
Cumulative Case Summary

cc: Sacramento County District Attorney's Office
Sacramento County Public Defender's Office